

		Receiver Jeremy W. Faith’s unopposed motion for order (1) discharging the Receiver, (2) approving his final report and account, (3) barring future claims against the Receiver, the Receiver’s employees, and professionals, (4) exonerating the Receiver’s bond, and (5) retaining jurisdiction over all matters related to the receivership estate and exoneration of the bond is granted. [ROA #902.] The Receiver is to submit a proposed order and give notice of this ruling. <u>Motion to Expunge Lis Pendens</u> Intervenor Preferred Bank’s motion for order expunging the lis pendens (recorded in the office of the San Bernardino County Recorder as Instrument No. 2025-0199109 on August 21, 2025) recorded by plaintiffs Mohammad Honarkar and 4G Wireless, Inc. against real property formerly owned by Tesoro Redlands DE, LLC (“Tesoro LLC”), and commonly known as 106 West Pennsylvania Avenue, Redlands, California 92374 (Assessor’s Parcel No. 0167-151-24, the “Tesoro property”) is granted. Intervenor is awarded attorneys’ fees of \$21,137.40. [ROA ## 1039, 460.] Intervenor’s request for judicial notice is granted. [ROA #1035.] Intervenor is to submit a proposed order and provide notice of this ruling.
107	2025-01469424 Roggero vs. Serrano Water District	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference <u>Demurrer</u> Defendants Serrano Water District and Jerry Vilander’s (“Defendants”) Demurrer to Plaintiff Vittorio Roggero (“Plaintiff”) Second Amended Complaint (“SAC”) is sustained in part and overruled in part. Defendants demur to the third cause of action for unlawful discrimination based on disability and to the fourth cause of action for unlawful harassment based on disability in the SAC. <u>3rd COA – Unlawful Discrimination (Disability)</u> Under the FEHA, it is unlawful to discriminate against an employee on the basis of a physical or mental disability. (See <i>Cornell v. Berkeley Tennis Club</i> (2017) 18 Cal.App.5th 908, 925.) Under the burden-shifting framework of <i>McDonnell Douglas Corp.</i>, the plaintiff must “first establish a prima facie case of discrimination by showing that ‘he or she (1) suffered from a disability, or was regarded as suffering from a disability; (2) could perform the essential duties of the job with or without reasonable accommodations[;] and (3) was subjected to an adverse employment action because of the disability or perceived disability.’” (<i>Id.</i> at p. 926, citation omitted.) Defendants demur to this claim on the grounds that Plaintiff does not allege he “currently suffers from a disability” (i.e., that Plaintiff suffered from ADHD at the time of his employment or that Defendants knew of any); or that any adverse actions were taken against him due to Vilander’s discriminatory animus on the basis of Plaintiff’s disability. (ROA 107 [Demurrer at pp. 5-7].)

		Plaintiff alleges he has ADHD, which limits major life activities, including his ability to work, but that he could perform his essential job duties with reasonable accommodations; and, that after he asked for accommodations and made a complaint about Vilander’s discriminatory comments about his disability, he was investigated and his employment was terminated. (See SAC at ¶¶ 9, 11, 17, 19, 40.) On demurrer, the court must liberally construe the complaint, accept all pleaded factual allegations as true, and draw all reasonable inferences in the plaintiff’s favor. (<i>Carroll v. City and County of San Francisco</i> (2019) 41 Cal.App.5th 805, 811.) Applying that standard, here, Court finds Plaintiff has sufficiently pleaded a claim for discrimination based on his alleged disability. <u>4th COA – Unlawful Harassment (Disability)</u> “To establish a prima facie case of unlawful harassment under FEHA, a plaintiff must show ‘(1) he was a member of a protected class; (2) he was subjected to unwelcome ... harassment; (3) the harassment was based on [the plaintiff’s membership in an enumerated class]; (4) the harassment unreasonably interfered with his work performance by creating an intimidating, hostile, or offensive work environment; and (5) [the employer] is liable for the harassment.’” (<i>Martin v. Board of Trustees of California State University</i> (2023) 97 Cal.App.5th 149, 170, citation omitted.) For the harassment to create a hostile work environment, plaintiff must show that “defendant’s conduct would have interfered with a reasonable employee’s work performance and would have seriously affected the psychological well-being of a reasonable employee.” “The law prohibiting harassment is violated ‘[w]hen the workplace is permeated with discriminatory intimidation, ridicule and insult that is “ ‘sufficiently severe or pervasive to alter the conditions of the victim’s employment and create an abusive working environment.’ ” ’” (<i>Ibid.</i>, citations omitted.) The Court finds Plaintiff’s allegations (e.g., being called a “spaz” or statements that Plaintiff used to take Ritalin) are not sufficient to show severe or pervasive conduct that altered the conditions of Plaintiff’s employment or interfered with his work performance. Accordingly, the demurrer to this claim is sustained. Unless Plaintiff can show that this defect can be cured, the Court intends to sustain the demurrer without leave to amend. Absent a showing that leave should be granted, Defendants are ordered to answer the SAC within 15 days of the hearing. <u>Motion to Strike</u> Defendants’ unopposed Motion to Strike Portions of Plaintiff’s SAC is granted. The references to 42 U.S.C. § 1983 in paragraphs 7 and 21 of the SAC are stricken. Case management conference is continued to February 22, 2027 at 10:00 a.m. in Department C27. Defendants are ordered to give notice of the aforementioned rulings/orders.
108	2018-01045532 Horwich - Trust	1. (P) Motion to Strike Costs 2. (P) Motion – Other 3. (P) Motion for Attorney Fees and Costs